

Before the
FEDERAL MARITIME COMMISSION

Washington, DC 20573

Docket No. 22-21

MSRF Inc. v. Yang Ming Marine Transport Corporation

CONDITIONAL CONSENT MOTION TO AMEND SCHEDULING ORDER

Complainant MSRF Inc. hereby moves to amend the scheduling order entered by the Presiding Officer on January 17, 2023.

MSRF requests the amendment of the scheduling order for the following reasons. Complainant's brief, proposed findings of fact and appendix are currently due on March 21, 2023. Complainant's counsel has encountered staffing unanticipated staffing issues. Ms. Prefontaine is currently involved in a complex bench trial before Judge Robert Gettleman in the U.S. District Court for the Northern District of Illinois. The trial began earlier this month and has lasted much longer than anticipated by undersigned counsel. This trial also several of the firm's associate attorneys who are likewise unable to assist Mr. Williams in the preparation of the brief. In addition, the preparation of Complainant's brief has been further complicated by unexpected travel by Mr. Williams to attend to other urgent matters.

With one exception, Complainant has complied with the Presiding Officer's order of February 24, 2023, and the issues discussed in the conference between the Parties and the Presiding Officer on March 2, 2023. The exception involves providing Yang Ming with information regarding shipments which MSRF alleges were refused by HMM and whether MSRF requested space for such shipment from other carriers with whom MSRF had service contracts or other carriers. MSRF has encountered difficulty in obtaining this information because it requires communications with its overseas suppliers who are more directly involved in

booking the shipments. MSRF anticipates that it will be able to provide this information to Respondent by March 24, 2023.

On March 15, 2023, undersigned counsel consult with Respondent's counsel regarding this motion who authorized MSRF to state that Respondent does not object in principle to the request, but that it could be accommodated only if the date for Respondent's reply brief is extended until at least June 14, 2023, due to Mr. Jeffrey's previously mentioned travel plans in May. Respondent also noted that it intends to submit a brief response within the next few days, further explaining its position.

Accordingly, MSRF proposes the following amended scheduling order:

April 21, 2023	Complainant's Brief, Proposed Findings of Fact, and Appendix
June 14, 2023	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
June 28d, 2023	Complainant's Reply Brief and Responses to Proposed Findings of Fact

For the foregoing reasons, Complainant MSRF requests that the Commission grant the motion to amend the scheduling order.

Dated: December 7, 2022

Respectfully submitted,

/s/ R. Kevin Williams

R. Kevin Williams
Clark Hill PLC
130 E. Randolph Street, Suite 3900
Chicago, IL 60601
Telephone: 312-985-5907
Fax: 312-985-5956
kwilliams@clarkhill.com

CERTIFICATE OF SERVICE

I certify that on the 16th day of March, 2023, the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Attorneys for Respondent

Rebecca F. Fenneman

RFenneman@JeffreyFenneman.com

Eric Jeffrey

EJeffrey@JeffreyFenneman.com

700 12th Street, NW, Suite 700

Washington, DC 20005

s/ R. Kevin Williams

R. Kevin Williams

130 E. Randolph Street, Suite 3900

Chicago, IL 60601

Telephone: 312.985.5907

Email: kwilliams@clarkhill.com